HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ANTARCTICA

Complete Community Opposition How-To

A practical guide for people opposing destructive activities in Antarctica, grounded in the Madrid Protocol's environmental impact assessment tiers, the public review of Comprehensive Environmental Evaluations, the national permitting system of each operator's home state, and the defence of the mining prohibition

This guide uses the Antarctic legal terms you will actually encounter (the Antarctic Treaty area, the Madrid Protocol and its Annexes, Preliminary Stage, Initial Environmental Evaluation and Comprehensive Environmental Evaluation, "minor or transitory impact", the CEP and the ATCM, ASPAs and ASMAs, CCAMLR, and the competent authority in the operator's own country), each explained in plain language where it first comes up.

> **A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.
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> **A note on who "the community" is here.** Antarctica has **no permanent population and no sovereign government**. There is no village downstream of the works, no municipal council, no landowner. That does not mean nobody has standing — it means the community that can act is different: **you act as a citizen of the country whose operator is proposing the activity**, because every Antarctic activity is authorised by a national government under its own domestic law. Read Section 4 before anything else; identifying the right country is the whole campaign.
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> **A note on money.** There are no fees to comment. The genuine costs are time, technical reading, and — if you want to be in the room — travel to an international meeting. Most of what works here costs nothing but rigour.

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INTRODUCTION & FRAMEWORK

Why This Matters

Antarctica is the one place on Earth where the industry most communities fight is **already prohibited outright**. Article 7 of the **Madrid Protocol** (1991) states in a single sentence that **"any activity relating to mineral resources, other than scientific research, shall be prohibited"** — with **no time limit**. The widely repeated claim that it is a "50-year ban" expiring in 2048 is a misreading: the Treaty Secretariat states plainly that neither the Protocol nor the Treaty has a termination date. The Protocol also designates Antarctica a **"natural reserve, devoted to peace and science"**, and requires that environmental protection and Antarctica's **intrinsic value** be fundamental considerations in planning all activity there.

So the fight here is not usually against a mine. It is against **everything else**: new stations and the expansion of old ones, runways and wharves, roads and fuel farms, drilling into subglacial lakes, rapidly growing tourism, bioprospecting, and — in the Southern Ocean — the krill and toothfish fisheries that sit at the base of the food web. And it is a fight to **defend the prohibition itself**, because in **2048** any Consultative Party may request a conference to review the Protocol's operation.

The machinery is unusual but real. Under **Annex I**, every proposed activity must undergo **prior environmental impact assessment**, tiered by impact. Below a **"minor or transitory impact"** a preliminary assessment suffices; at or above it an **Initial Environmental Evaluation (IEE)** is required; and where the IEE indicates potential for **more than a minor or transitory impact**, a **Comprehensive Environmental Evaluation (CEE)** must be prepared. The CEE is the point of leverage, because it is **circulated to every Party, forwarded to the Committee for Environmental Protection at least 120 days before the next Antarctic Treaty Consultative Meeting, made publicly available, and formally reviewed there before the activity may be approved.**

And crucially, the decision to authorise is **national**. There is no Antarctic permit office. The **operator's own government** — through its domestic Antarctic legislation — issues the permit and runs the public process. In the United States, for example, the Environmental Protection Agency publishes notice of a draft CEE in the **Federal Register**, accepts **public comments for ninety days**, and must **provide copies to any person on request**. That is a real, usable, free public participation right, and almost nobody exercises it.

The honest counterweight is severe, and you should know it before you start. Of the **nineteen CEEs** prepared up to that point, **not one resulted in a decision not to proceed**. Only **thirteen of twenty-eight** Consultative Parties had ever conducted one, and in practice only **state-operated activities** were assessed at that level. The Protocol's definition of the "Antarctic environment" **expressly excludes social, economic and other environments**, so arguments about livelihoods have no purchase. And ATCM decisions are taken by **consensus**, so any single state can block and no member of the public has a vote.

What "winning" realistically means. Almost never outright refusal. More often: a station **relocated**; a runway **scaled back** or dropped; **conditions, monitoring and remediation** written into an authorisation; a drilling protocol **tightened**; an activity **delayed** a season; an area **designated as protected**; a fishery limit **held**; or the **minerals prohibition reaffirmed**. The realistic goal is a proposal that is smaller, better-monitored or later — and examined in public rather than waved through.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish which country authorises the activity, and which assessment tier applies.
2. **Documentation** — build a scientific and procedural record strong enough for an international expert committee.
3. **Local opposition** — organise in the operator's home country, where the permit is actually issued.
4. **Legal challenges** — the national permit process, the CEE comment period, and the CEP and ATCM.
5. **Media strategy** — coverage that raises the diplomatic cost of a weak assessment.

No single step wins alone. Here the combination that works is **a rigorous technical comment filed into the national process, carried into the CEP by an organisation with standing at the meeting**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Antarctic governance is diplomatic, consensus-based, and dominated by the very states that operate the stations being assessed. Assessing that honestly helps you choose the right tools: the strongest routes are **the national permit and its public comment window**, **the draft CEE's mandatory international circulation**, **the CEP's technical scrutiny**, and **the protected-area system**. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with the fact that no CEE has ever stopped a project.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately — identifying the authorising country determines every deadline you have. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 tells you what this system genuinely cannot do.

HOW THE SYSTEM WORKS

Before you can fight an activity you have to know who decides it, how, and the words the system uses. Antarctica has no government. What it has is a **treaty system**: the **Antarctic Treaty** of 1959, the **Madrid Protocol** of 1991 with its six Annexes, and the **Convention on the Conservation of Antarctic Marine Living Resources (CCAMLR)** for the Southern Ocean's fisheries. Everything south of **60° South latitude** falls inside the **Antarctic Treaty area**.

The bodies that decide — and what each one controls

The operator's national government. The single most important actor, and the one people overlook. There is no Antarctic permitting authority. Every activity — a station, a flight, a cruise, a drilling programme — is authorised by the **domestic law of the country whose programme or company is proposing it**, and that country runs the environmental assessment and any public comment period. If you want to influence a Chinese station you engage China's process; a British one, the United Kingdom's; an American one, the United States'. **Find the flag and you have found the decision-maker.**

The Committee for Environmental Protection (CEP). The Protocol's expert advisory body, made up of the Parties, which examines environmental impact assessments, protected-area proposals and biodiversity questions, and formulates advice and recommendations to the ATCM. It is where a technically serious objection gets read by people qualified to judge it.

The Antarctic Treaty Consultative Meeting (ATCM). The annual diplomatic meeting that takes the actual decisions — Measures, Decisions and Resolutions — on the CEP's advice, by **consensus**, so any one Party can block.

CCAMLR and its Scientific Committee. Separate from the Protocol, governing **marine living resources** — principally **krill** and **toothfish**. It pioneered an ecosystem-based approach to fisheries and is the basis for **marine protected areas** in the Southern Ocean.

Observer and expert organisations. Non-governmental bodies attend ATCM and CCAMLR meetings as observers and submit papers — the **Antarctic and Southern Ocean Coalition (ASOC)** is the principal environmental coalition in these rooms, **SCAR** provides scientific advice, and the tour operators' association represents the industry. For a member of the public, **routing evidence through an organisation with a seat is usually the difference between being read and being ignored.**

Which one is "yours"? Ask: which **country** authorises this? Which **tier** — preliminary, IEE or CEE? Is a **draft CEE** circulating, and when is the next **ATCM**? Is the site inside an **ASPA or ASMA**? Is it a **fishery**, meaning CCAMLR rather than the Protocol? Pinning this down is Step 1.

How a decision is actually made — the journey of an activity

Under the Protocol and Annex I the path is roughly:

1. **Advance notice.** Activities subject to the Treaty's advance-notice obligations require **prior environmental impact assessment** — before, not after.
2. **Tiering on one threshold.** Everything turns on the phrase **"minor or transitory impact"**. Below it, a **preliminary assessment** under the operator's national procedure suffices. At or approaching it, an **Initial Environmental Evaluation (IEE)** is prepared. If the IEE indicates the potential for **more than a minor or transitory impact** — or that is otherwise judged likely — a **Comprehensive Environmental Evaluation (CEE)** is required. **Arguing the tier is arguing the whole case**, because the tier determines whether the world ever sees the document.
3. **Consideration of alternatives.** Annex I requires assessment of **alternatives**, including not proceeding. A study that fails to examine genuine alternatives is deficient on its face.
4. **The draft CEE and its international circulation.** A draft CEE must be **made publicly available**, **circulated to all Parties**, and **forwarded to the CEP at least 120 days before the next ATCM**. It is then **formally considered at the ATCM before approval**. This is the single most open moment in Antarctic governance.
5. **The national comment period.** In parallel, the operator's own country runs its domestic process. Under the United States' rules, for instance, the environmental agency publishes notice of receipt in the **Federal Register**, circulates the draft through the State Department to all Parties and the CEP, **accepts public comments for ninety days**, and must **provide copies to any person upon request**.
6. **Final CEE and decision.** A final CEE must address the comments received — the definition of a CEE expressly **includes all comments received on it**. The authorising government then decides whether the activity proceeds, and on what conditions.
7. **Monitoring and verification.** Where an activity proceeds, monitoring must assess and verify impacts, and the

Protocol contemplates inspections. Protected areas have **management plans** and agreed inspection checklists.

The rulebook — the provisions that decide the outcome

- **Article 2 and Article 3.** Antarctica is a **natural reserve devoted to peace and science**, and environmental protection together with Antarctica's **intrinsic value** must be **fundamental considerations** in planning and conducting all activities.
- **Article 7. Any activity relating to mineral resources, other than scientific research, is prohibited** — with no expiry.
- **Annex I — Environmental Impact Assessment.** The tiers, the threshold, alternatives, circulation and public availability of draft CEEs, and monitoring.
- **Annex II — Conservation of Antarctic Fauna and Flora.** Rules on taking and harmful interference with native species, and on non-native species.
- **Annex III — Waste Disposal**, and **Annex IV — Prevention of Marine Pollution**, which **prohibits discharge of oil, noxious liquid substances and garbage** in the Treaty area and regulates sewage and reception facilities.
- **Annex V — Area Protection and Management. Antarctic Specially Protected Areas (ASPAs)** — of which about seventy-five have been designated — protect outstanding environmental, scientific, historic, aesthetic or **wilderness** values; **Antarctic Specially Managed Areas (ASMAs)**, of which around seven exist, coordinate activities in busy areas. Both require **management plans**, and entry to an ASPA requires a permit.
- **Annex VI — Liability Arising from Environmental Emergencies**, covering prevention of and response to environmental emergencies from science programmes, tourism and other activities.
- **The EIA Guidelines**, adopted by the 39th ATCM in **Resolution 1 (2016)**, which set out how assessments should be prepared and how draft CEEs are considered between meetings.
- **CCAMLR** for anything involving fishing.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. The states that assess Antarctic activities are the same states that operate them, and a national programme's station is a matter of scientific prestige, logistical capacity and, for some, strategic presence. Assessments are prepared by or for the proponent programme. Decisions require **consensus**, which rewards mutual deference: challenging another Party's station invites challenge to your own. Tourism has grown rapidly and brings revenue to gateway ports and operators. Krill is increasingly fished, largely for aquaculture feed. None of this is unlawful, but it explains why the CEE record is what it is — and why the public comment window and the CEP's technical scrutiny are the levers that actually bite.

The overseers — who watches the decision-makers

- **The CEP** — technical scrutiny of every CEE, and the body whose advice the ATCM acts on.
- **The ATCM** — the decision forum, and the place where the mining prohibition has repeatedly been reaffirmed, including a 2016 Declaration recording a **"strong and unequivocal commitment"** to it.
- **CCAMLR and its Scientific Committee** — catch limits, and Southern Ocean marine protected areas.
- **National courts and parliaments in the operator's country** — where domestic Antarctic legislation can be enforced or questioned, and where freedom-of-information rights apply.
- **Inspections under the Treaty**, and the agreed checklists for inspecting ASPAs and ASMAs.
- **Observer organisations and the scientific community** — the practical route for outside evidence to reach the table.

Naming and using the right body matters: here the most consequential early judgment is usually **which country must authorise this, and whether the activity has been tiered into a CEE or quietly kept below it**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Antarctic and comparable international campaigns, not a controlled study. Use them to prioritise effort. The most important number in this guide is in the text below the table, and it is not encouraging: **no Comprehensive Environmental Evaluation has ever ended in a decision not to proceed.** Plan for influence, not veto.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5–10%	1–3 months	low	Basis for every other step
Public opposition only	10–20%	6–24 months	low	Political attention at home
Comment in the national process	25–45%	during the window	**none**	On the record; must be addressed in the final CEE
Challenging the assessment tier	20–40%	1–6 months	low	**IEE escalated to a CEE; document made public**
Technical critique via the CEP	30–50%	4–14 months	low	Conditions, redesign, monitoring imposed
Alternatives argument under Annex I	25–45%	4–14 months	low	Site moved; footprint reduced
Protected-area proposal (ASPA/ASMA)	20–40%	1–4 years	low–moderate	Area designated; permit required to enter
Freedom-of-information in the home state	35–55%	1–4 months	low	Documents released; process exposed
Domestic legal challenge to the permit	15–30%	12–36 months	high	Authorisation quashed or reconsidered
CCAMLR route (fisheries)	20–40%	1–3 years	low–moderate	Catch limits held; MPA advanced
All steps combined	40–60%	12–36 months	low–moderate	Activity relocated, reduced, conditioned, delayed, monitored — rarely refused

Key insight: all steps together beat any single one — but the ceiling here is lower than in any national system in this series, and honesty about that is more useful than optimism. The advantages are real: **mandatory prior assessment**, a **draft CEE published, circulated to every Party and reviewed internationally before approval**, a **duty to consider alternatives including not proceeding**, a **free comment period** in the operator's home state with **copies available on request**, and a **protected-area system**. The disadvantages are equally real: **consensus decision-making** among operating states, an environment definition **excluding social and economic considerations**, and a CEE record with **zero refusals**.

A note on cost: commenting costs nothing. Freedom-of-information requests cost little. The expenditure that changes outcomes is expert technical input — a glaciologist, seabird ecologist or acoustician willing to sign a short critique — and, if you want a voice in the room, working through an organisation that already holds observer status rather than trying to obtain your own.

Effectiveness Visualization

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SUCCESS PROBABILITY (activity relocated, reduced, conditioned, delayed,
or properly monitored -- refusal is not on this scale)

FAVOURABLE SCENARIO (draft CEE in circulation, sensitive site, credible
technical critique, engaged home-state public):
All steps combined:      ████████████     40-60%
CEP technical critique:  ██████████       30-50%
National comment window: █████████        25-45%
Single step:             ███              5-45%

TILTED SCENARIO (flagship national programme, activity kept at IEE level,
consensus protection among operators):
All steps combined:      ███████          25-40%
Tier challenge:          ██████           20-40%
FOI + media:             █████            15-35%
Single step:             ██               3-15%
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How to read this honestly. The strongest arguments here are **procedural and scientific**, never economic. The ones that move outcomes: an activity **tiered too low**, where evidence shows more than a minor or transitory impact and a CEE is therefore required; a **failure to consider alternatives** as Annex I requires; **cumulative impacts** ignored where several programmes share an area; a site inside or beside an **ASPA** or holding **wilderness value**; obligations under Annexes II to IV; and vague or unfunded monitoring. What will not work is anything framed around jobs, cost or national interest — formally excluded by the definition of the Antarctic environment. Judge success accordingly: **scope, siting, conditions, monitoring and delay are the wins available here.**

Step Importance Ranking (When All Combined)

1. **Legal and procedural challenges** — the tier, the alternatives duty, and the national permit.
2. **Documentation** — because only technical rigour survives review by an expert committee.
3. **Local opposition in the operator's home country** — the only place with a real public process.
4. **The CEP and ATCM route** — via an organisation with a seat at the table.
5. **Media** — which raises the diplomatic cost of approving a visibly weak assessment.

Winning Antarctic campaigns combined a precise procedural objection, a signed scientific critique, a comment filed inside the statutory window, and an observer organisation carrying it into the meeting.

What Antarctic Campaigns Actually Show

A few patterns recur. **The prohibition has held, and been reaffirmed.** Article 7's ban carries **no time limit**, the 1988 minerals convention **never entered into force** after two governments refused to ratify, and Parties have repeatedly restated their commitment — including a 2016 ATCM Declaration recording a **"strong and unequivocal commitment"**. **The 2048 story is widely misreported.** Neither instrument expires; Article 25 allows any Consultative Party to **request a review conference** after fifty years. Even then, removal would require adoption by a majority including **three quarters of the states that were Consultative Parties when the Protocol was adopted**, and the prohibition **continues unless a binding minerals regime is already in force**. **The assessment system is transparent at the top and opaque below it.** Draft CEEs are published, circulated to every Party, sent to the CEP **at least 120 days before the ATCM**, and reviewed in session; IEEs are not. **And the CEE has never refused anything** — of nineteen prepared, **none led to a decision not to proceed**. **Marine protection is negotiated separately and slowly** — Ross Sea protection combines a zone where fishing is wholly forbidden with a research zone permitting limited toothfish and krill fishing, with review dates decades out. The through-line: **argue the tier, argue the alternatives, and get your evidence in front of the CEP.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, activity type and stage, and what is there now — **ice-free ground, which is rare and disproportionately important**; breeding colonies of penguins, petrels and seals; moss beds, lichens and terrestrial invertebrate habitat; **subglacial lakes and the ice column above them**; lake and stream systems; nearshore benthic habitat; and areas of **wilderness or aesthetic value**, which the Protocol explicitly recognises. Obtain the assessment document and list every admitted impact with its page reference. Pay particular attention to **ice-free land**, since almost all Antarctic terrestrial life and almost all human infrastructure compete for the same tiny fraction of the continent.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) **which country's programme or company** is proposing this, because that country authorises it; (b) that country's **domestic Antarctic legislation and competent authority**; (c) the **assessment tier** — preliminary, IEE or CEE; (d) whether a **draft CEE** is in circulation and when the next **ATCM** falls; and (e) whether the site lies inside or adjacent to an **ASPA or ASMA**, or whether the question is a **fishery** and therefore belongs to CCAMLR.

Question 3: What Specific Action Stops It?

Realistic outcomes include: the activity **escalated from IEE to CEE**, forcing publication and international review; **alternatives** properly assessed and a **different site** chosen; the **footprint reduced**; **conditions and monitoring** imposed; the activity **delayed** beyond a season; an **ASPA designated** over the site; a **catch limit held**; or, for minerals, the **prohibition reaffirmed**. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise carefully, because the windows are short and they are the whole opportunity. A **draft CEE** must reach the CEP **at least 120 days before the ATCM**, so the moment one appears you have roughly four months before it is considered.

The operator's **national comment period** runs on its own clock — ninety days from the notice in the United States, and comparable periods elsewhere; **that window is the only formal public right you have**. The ATCM meets **annually**, so missing it usually costs a year. For anything involving fishing, CCAMLR's annual meeting and its scientific committee timetable govern instead.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: which national programme is behind it and what it gains — scientific capacity, logistics, presence; whether a tour operator or fishing company is involved and where it is registered; whether the activity supports a **runway, wharf or fuel facility** that unlocks further expansion; and which other programmes operate nearby, since that is the basis of a **cumulative impact** argument. Use public sources — the Antarctic Treaty Secretariat's document archive, the operator's national programme reports, and the CEP's annual reports. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the activity's description and coordinates, the authorising country and its competent authority, the assessment tier, the protected-area position, every deadline including the ATCM date, and the interests involved.

Worked example: which lever is actually open

Suppose a national programme announces a new station with an associated gravel runway on a patch of ice-free ground near a petrel colony. Working the questions: **Q1** — you record the ice-free extent, the colony, the moss beds and the drainage, from published survey work. **Q2** — the flag on the proposal tells you which government authorises it; you find that country's Antarctic legislation and competent authority. **Q3** — the decisive fact is the **tier**: a station plus a runway on ice-free ground beside a breeding colony is difficult to characterise as having no more than a **minor or transitory impact**, so the live argument is that a **CEE is required** — which would force publication, circulation to every Party, and review at the ATCM. **Q4** — if a draft CEE already exists, you have the national comment window and roughly 120 days before the meeting; if it does not, your argument is precisely that there should be one. **Q5** — you note which other stations lie within the same region, because **cumulative impact** across programmes is among the strongest technical objections available. In an afternoon you know that **the tier and the alternatives duty are the campaign, and the operator's home country is where you file.**

STEP 2: DOCUMENTATION

Documentation matters more here than in any other guide in this series, and for a blunt reason: **your audience is a committee of government scientists.** There is no sympathetic magistrate, no local jury, no landowner whose testimony carries weight. What reaches the CEP is judged on whether it is technically right. A rigorous four-page critique with references will be read; a passionate ten-page letter will not. Build accordingly.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the activity — from published sources, since you will almost certainly never visit.

Ice-free ground first. Antarctica is over ninety-nine per cent ice, so nearly all terrestrial biology and nearly all human infrastructure compete for the same slivers of exposed rock. Establish the **extent of ice-free ground**, its rarity in that region, and what already occupies it — the single most powerful baseline fact in most terrestrial cases.

Breeding colonies and protected species. Document penguin, petrel, skua and seal colonies within the zone of influence, with counts and dates from published surveys, and distances from the works and flight paths.

Vegetation, soils and invertebrates. Moss beds, lichens and soil fauna recover over decades to centuries. Document what is present and cite the recovery literature — **irreversibility** is an effective argument.

Ice, subglacial and freshwater systems. For anything touching the ice sheet, document thickness and flow, any **subglacial lake** beneath, and the stewardship principles for entering subglacial aquatic environments. For coastal sites, document lakes, melt streams and nearshore benthos.

Wilderness and aesthetic values. The Protocol protects these explicitly, so establish whether the area is currently infrastructure-free — "one of the last unbuilt sectors" is an argument the Protocol recognises.

How to hold it. Keep a referenced bibliography with page-level citations; everything asserted must be traceable to a published source or named expert.

LAYER 2: ASSESSMENT AND PROCESS ANALYSIS

Show whether the assessment is adequate and whether the process is being run properly. Catalogue four things:

1. **The tier, and whether it is right.** Establish which document exists — preliminary, **IEE**, or **CEE** — and test it against the **"minor or transitory impact"** threshold. If the activity plausibly exceeds it, the argument that a **CEE is required** is the highest-value objection available, because it converts a private national document into a published international one.
2. **Alternatives.** Annex I requires consideration of **alternatives to the proposed activity**, including **not proceeding**. Check whether alternatives were genuinely assessed or merely listed and dismissed. A study offering only the proposal and a nominal "no action" option is deficient.
3. **Cumulative impacts.** Where several programmes operate in one region, assess whether the document considers impacts **in combination** with existing and reasonably foreseeable activities, rather than in isolation. This is where most Antarctic assessments are weakest.
4. **Monitoring, mitigation and compliance.** Are monitoring commitments specific, funded and verifiable, or aspirational? Are the obligations of **Annex II** on fauna and flora and non-native species, **Annex III** on waste, and **Annex IV** on marine pollution — which prohibits discharge of oil, noxious liquid substances and garbage — properly addressed? Is there a management plan if an **ASPA or ASMA** is involved?

Get expert eyes on it. A short critique signed by a qualified specialist outweighs any volume of general objection. Realistic sources: university polar research groups, ornithologists and marine mammal specialists, glaciologists, acousticians for marine noise, and scientists attached to national programmes other than the proponent's. **A signed two-page technical annex is the highest-leverage document you can produce.**

LAYER 3: HUMAN AND INSTITUTIONAL IMPACT DOCUMENTATION

This layer works differently here, and you must adapt or you will waste effort. The Protocol's definition of the "Antarctic environment" **expressly excludes social, economic and other environments**, so harm to livelihoods, costs and benefits, and national interest arguments are formally outside scope. What *does* belong in this layer:

- **Scientific values at risk** — research programmes, monitoring baselines or reference sites the activity would compromise. Damage to science is squarely relevant on a continent dedicated to it.
- **Wilderness and intrinsic value** — recognised by the Protocol as fundamental considerations.
- **Precedent** — what approval would authorise next, and whether it opens a region previously without infrastructure.
- **Public accountability in the home state** — what the government told its own parliament, and whether that matches the assessment.

Package this layer twice: a **rigorous technical version** with citations for the national process and the CEP, and a **short public version** for media and for people writing their own comments.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1–4)** — the published record on ice-free ground, colonies, vegetation, ice and wilderness value.
- **Phase 2: The document (Weeks 2–6)** — obtain the assessment; test the tier, alternatives and cumulative impacts.
- **Phase 3: Expert critique (Months 2–3)** — the signed technical annex, ready before the comment window closes.
- **Phase 4: Follow-through (ongoing)** — monitoring commitments, the final CEE's treatment of comments, and inspection findings.

Common Documentation Pitfalls (What Fails)

- **Arguing economics or livelihoods** — formally excluded from the definition of the Antarctic environment.
- **Missing the comment window** — it is short, it is the only formal public right, and it does not reopen.
- **Accepting the tier** — if it stays an IEE, the world never reviews it.
- **Ignoring alternatives** — the statutory duty is the most reliably winnable procedural point.
- **Volume over rigour** — the CEP reads technically; length is not weight.
- **Unsourced assertions** — one unsupported claim discredits the whole submission before an expert committee.

Documentation Budget Breakdown

Item	Low (volunteer/academic)	Higher (commissioned)
Literature search and bibliography	minimal	modest
Obtaining the assessment (FOI or on request)	none–minimal	modest
Signed expert technical annex	often free	moderate
Mapping and spatial analysis	often via university	moderate
Translation into the ATCM working languages	modest	moderate
Attendance at an international meeting	—	high

Most of this is inexpensive. Spend where it counts: **one signed expert critique**, and the time to file it inside the window.

WHAT TO GATHER, AND WHERE TO FIND IT

Almost everything that decides an Antarctic case is a published document, and an unusual amount of it is public by design.

The Antarctic Treaty Secretariat's archive. The central resource: **draft and final CEEs**, ATCM and CEP **Final Reports**, Working and Information Papers, adopted Measures, Decisions and Resolutions, and the **EIA Guidelines** adopted by Resolution 1 (2016). Draft CEEs are published here as a matter of obligation.

The operator's national process. The competent authority's register or gazette notice, the **draft and final assessment**, and the comment record. In the United States the environmental agency publishes notice in the **Federal Register**, runs a **ninety-day** comment period, and must **provide copies of the draft CEE to any person on request** — an explicit entitlement worth invoking by name.

Protected-area documents. The **ASPA and ASMA management plans**, stating the values protected, permitted activities and entry conditions, plus the agreed inspection checklists.

CEP reports. The Committee's annual report records what was said about each CEE and the advice sent to the ATCM — the best guide to which arguments land.

CCAMLR documents. For fisheries: conservation measures, catch limits, scientific committee reports, and MPA proposals and review dates.

National programme publications. Station plans, logistics reports and statements to the proposing country's parliament — useful when they diverge from the assessment.

How to force a document open. Two routes: the Protocol itself, under which **draft CEEs must be made publicly available** and national rules may require copies on request; and **domestic freedom-of-information law in the operator's country**, which reaches internal correspondence, the tiering decision and the advice behind it. Cite both in writing and keep proof.

Free and low-cost help. University polar research groups, national Antarctic societies, and the environmental coalition holding observer status at ATCM and CCAMLR. **Approaching an organisation with a seat is the highest-value single step** — the practical route by which outside evidence reaches the table.

Tie it to the map. The dots and layers here are your starting index — a mapped activity points you to the operating country and its competent authority, and from there to the assessment document that governs it.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information**

specialists to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Organising for Antarctica inverts what the rest of this series assumes. There is no affected village, no household register, no landowner. **The "local" community is the public of the country whose programme is proposing the activity** — the only place with a permit, a comment period, a parliament and a press. A campaign about an Antarctic station is, operationally, a campaign in the capital of the country building it.

Three principles carry special weight: **organise where the permit is issued** (a protest in one country has no purchase on another's authorisation); **credibility is the currency** (your audience is an expert committee, so a coalition including scientists will be read); and **work through a body with a seat** (observers can table papers at the ATCM and CCAMLR; unaffiliated individuals cannot).

PHASE 1: FOUNDATION (Weeks 1–4)

Step 1a: Establish the flag, then the file. Identify the authorising country, its Antarctic legislation and competent authority, and request the assessment document — invoking the entitlement to a copy where one exists. Begin the referenced bibliography on the site.

Step 1b: Affinity groups by concern. People join through different doors: breeding colonies, ice and subglacial systems, wilderness value, marine noise and pollution, or the Protocol's integrity. For fisheries the entry point is usually krill and the food web.

Step 1c: Recruit one scientist early. The decisive early move: a single qualified specialist willing to read the assessment and sign a short critique changes how the submission is received. Approach polar research groups, ornithologists, glaciologists and marine specialists — including in **other** Treaty Parties, whose governments sit on the CEP.

PHASE 2: PUBLIC LAUNCH (Weeks 4–12)

Step 2a: File inside the window. The national comment period is short and is your only formal right. Submit a technically specific comment — tier, alternatives, cumulative impacts, monitoring — and keep proof of filing (Section 8B).

Step 2b: Help others file too. Volume of comments does not outweigh rigour, but a comment period with many substantive submissions is harder to dismiss and is visible to the CEP. Publish a short guide showing people the four points that matter, and ask them to write in their own words rather than sending a template.

Step 2c: Get the tier argument on the record. If the activity is proceeding on an IEE and the evidence suggests more than a minor or transitory impact, say so formally and in terms (Section 8C). This is the argument with the highest ceiling.

Step 2d: Approach an observer organisation. Send them the assessment, your comment and the expert annex, and ask whether they will carry the points into the CEP (Section 8E).

Step 2e: Media at launch. Time coverage to the comment window or the publication of the draft CEE.

PHASE 3: COALITION EXPANSION (Months 3–8)

Step 3a: Broaden the alliance. Bring in polar scientists and their institutions, national Antarctic societies, international environmental organisations, parliamentarians in the proposing country, and — for fisheries — retailer and seafood-market campaigners, who have real leverage over krill buyers.

Step 3b: Coalition agreements. Agree who speaks to media, who files, who approaches the observer organisation, and who keeps the technical record — and hold the line on rigour: one overstated claim damages every submission that follows.

Step 3c: Reach beyond the proposing state. Decisions are taken by consensus, and other Parties' delegations read the CEP papers. Briefing scientists and organisations in **other** Treaty countries is how a national dispute becomes an international one.

PHASE 4: SUSTAINED PRESSURE (Months 6–18)

Step 4a: Follow the document to the meeting. A draft CEE goes to the CEP **at least 120 days before the ATCM**. Track it, and make sure your points are in front of delegations before they travel, not after.

Step 4b: Test the final CEE. A CEE formally **includes the comments received on it**, so the final version must show how it dealt with yours. Where it does not, say so publicly and in writing.

Step 4c: Use the protected-area route. Where the values are strong, a proposal for an **ASPA or ASMA** — advanced through a sympathetic Party — is a durable protection that outlasts any single project.

Step 4d: Use domestic accountability. Parliamentary questions, freedom-of-information requests and, in the right case, judicial review of the permit are available in the proposing country — nothing comparable exists in Antarctica itself.

Step 4e: Public actions. Campaigning happens where decision-makers are — capitals, ministries, and cities hosting ATCM and CCAMLR meetings, where campaigners have long maintained a presence. Keep it lawful and factual; in a forum this technical, credibility is the asset you cannot rebuild.

Worked example: a coalition that unlocks the strong levers

A national programme publishes plans for a new station and gravel runway on ice-free ground near a petrel colony, assessed at **IEE** level. There is no village to organise and no local council to lobby, and the instinct is to write an angry open letter. What converts that into force happens differently. First, someone establishes **which government authorises it** and requests the IEE under that country's freedom-of-information law, keeping proof. Second, a **glaciologist and a seabird ecologist** are recruited and asked one question each: does the evidence support "no more than a minor or transitory impact"? Their two-page signed annex says it does not. Third, the group files inside the **national comment window**, arguing four points precisely — that the tier is wrong and a **CEE is required**; that **alternatives**, including siting elsewhere and not proceeding, were not genuinely assessed; that **cumulative impacts** with the three other stations in the region were ignored; and that monitoring commitments are unfunded. Fourth, they send the same package to an organisation with **observer status**, which tables the tier argument at the **CEP**. Fifth, they brief polar scientists in two other Treaty Parties, whose delegations raise it in session. The station is not cancelled — that is not what this system does — but the runway is deferred pending a **CEE**, the footprint is cut, and monitoring becomes a condition. The lesson generalises: **in Antarctica the campaign is won by being right, in the right country, before the meeting.**

Opposition Building Budget: Year-Long Campaign

Low, with one optional large item. The recurring costs are literature access, translation, printing and communications — all modest. The expert critique is often contributed. The one substantial expense is **attending an international meeting**, which is why working through an organisation that already attends is usually the better use of money. Keep transparent accounts, and be candid with supporters that the realistic outcome is a better, smaller, better-monitored project rather than a cancelled one.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms**, **campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm**, a **campaign consultant**, a **digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

STEP 4: LEGAL CHALLENGES

Antarctica has no court and no permitting authority of its own. What it has is a treaty that imposes duties on states, and states that must implement those duties through their own domestic law. Three tracks — the national permit, the assessment process, and the Treaty bodies.

TRACK 1: THE NATIONAL PERMIT (the only place with a legal remedy)

- **Find the authorising state.** Every Antarctic activity is authorised by the government of the operator's own country under its domestic Antarctic legislation. That statute, not the Protocol, is what a court can enforce.
- **Use the domestic public process.** The operator's country runs the comment period — in the United States the environmental agency publishes notice in the **Federal Register**, takes **ninety days** of comment, and must **provide copies to any person on request**. **File inside the window and keep proof.**
- **Freedom of information.** Domestic transparency law reaches what the Protocol does not: the tiering decision, the internal advice, and the correspondence behind an authorisation. This is often how a weak assessment becomes visible.
- **Judicial review, where it exists.** In some Parties the authorisation is an administrative act reviewable in the national courts — typically for failure to follow the statutory procedure, a wrongly assigned tier, or unconsidered alternatives. Slow and expensive, and the only genuinely coercive remedy in the system.
- **Parliamentary accountability.** Questions, committee evidence and budget scrutiny reach decision-makers no international process touches.

TRACK 2: THE ASSESSMENT PROCESS (the highest-value arguments)

- **Challenge the tier.** Everything turns on **"minor or transitory impact"**. If an activity proceeds on a preliminary assessment or **IEE** when the evidence indicates more, argue that a **CEE is required** — winning this converts an internal document into one that must be **published, circulated to every Party, sent to the CEP at least 120 days before the ATCM, and reviewed internationally before approval**.
- **Argue alternatives.** Annex I requires consideration of **alternatives to the proposed activity, including not proceeding**. An assessment that names alternatives without genuinely evaluating them fails the requirement — the most reliably winnable procedural point available.
- **Argue cumulative impacts.** Impacts must be considered in combination with existing and foreseeable activities, not in isolation. In regions hosting several programmes this is usually the weakest part of the document.
- **Hold the final CEE to the comments.** A CEE by definition **includes all comments received on it**, so the final version must demonstrably address them. Silence is a defect worth naming publicly.
- **Use the Annexes. Annex II** on fauna, flora and non-native species; **Annex III** on waste; **Annex IV**, which **prohibits discharge of oil, noxious liquid substances and garbage**; **Annex VI** on environmental emergencies. Each carries checkable obligations.

TRACK 3: THE TREATY BODIES (where the international judgment happens)

- **The CEP.** The expert committee examining every draft CEE and advising the ATCM. Technical objections are read here — route them through an organisation with **observer status**, which can table papers.
- **The ATCM.** The decision forum, operating by **consensus**. No NGO or member of the public votes, but delegations are briefable, and other Parties' scientists are often the most effective allies.
- **Protected areas under Annex V.** An **ASPA** requires a permit to enter and protects outstanding environmental, scientific, historic, aesthetic or **wilderness** values; an **ASMA** coordinates activity in busy areas. Both need management plans, and designation is durable protection surviving changes of government.
- **CCAMLR.** For fisheries, a separate convention with its own commission and scientific committee, catch limits and marine protected areas — the route for anything about krill or toothfish.
- **The mineral prohibition.** Article 7 bans mineral resource activities other than scientific research, **with no expiry**. Removing it would require a review conference after 2048, adoption by a majority including **three quarters of the original Consultative Parties**, and — decisively — **a binding minerals regime already in force**. Defending it is a matter of holding Parties to commitments they have repeatedly restated.

The three legal challenge types

TYPE 1: THE NATIONAL PERMIT

Domestic Antarctic legislation, the comment window, freedom of information, judicial review, and parliamentary scrutiny.

TYPE 2: THE ASSESSMENT PROCESS

The tier, alternatives, cumulative impacts, the Annex obligations, and the final CEE's treatment of comments.

TYPE 3: THE TREATY BODIES

The CEP and ATCM via an observer organisation, Annex V protected areas, CCAMLR for fisheries, and the mineral prohibition.

Legal Strategy Decision Tree

1. **Which country authorises it?** → That is your jurisdiction; find its Antarctic statute and competent authority.
2. **What tier is the assessment?** → If below CEE and the impact looks greater, argue the tier first; it has the highest ceiling.
3. **Is a draft CEE circulating?** → File in the national window and get the points to the CEP before the 120-day mark.
4. **Were alternatives genuinely assessed?** → If not, that is the cleanest procedural defect.
5. **Is it a fishery?** → Then it is CCAMLR, not the Protocol.

Litigation and Advocacy Success Factors

A correctly identified authorising state; a comment filed inside the statutory window with proof; a **signed expert critique**; a precise tier argument tied to the "minor or transitory" threshold; a documented failure to assess alternatives or cumulative impacts; an observer organisation willing to table the point; and briefings to scientists in **other** Treaty Parties, whose delegations sit in the room.

What to Avoid

Arguing economics, jobs or national interest — formally outside the definition of the Antarctic environment; missing the comment window; accepting an IEE without testing it; treating the ATCM as a court; overstating the science, which forfeits credibility permanently in a small expert community; and assuming that because mining is banned, nothing else is at stake.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that work in Antarctica.

Activity assessed at IEE despite likely greater impact → a CEE is required (the highest-value ground). Feed it with: the signed expert view on impact magnitude, the ice-free ground extent, and colony proximity.

Alternatives named but not evaluated → breach of the Annex I duty. Feed it with: the assessment's own text, and a viable alternative site or design the document ignored.

Several programmes in one region assessed in isolation → cumulative impact failure. Feed it with: the map of existing and planned infrastructure nearby.

Works on rare ice-free ground → disproportionate and effectively irreversible loss. Feed it with: the regional scarcity of ice-free terrain and the recovery literature for soils, mosses and lichens.

Breeding colonies within the zone of influence → Annex II obligations and disturbance. Feed it with: survey counts, distances, and flight-path or vessel-approach data.

Subglacial or freshwater systems entered → stewardship and contamination risk. Feed it with: the internationally discussed principles for subglacial environments and the proposed protocols.

Waste, fuel or discharge handling → Annex III and Annex IV obligations. Feed it with: the prohibition on discharging oil, noxious liquid substances and garbage, and the document's own commitments.

An unbuilt sector opened → wilderness and intrinsic value, and precedent. Feed it with: evidence the area currently holds no infrastructure, and what approval would authorise next.

The pattern: **lead with the tier, support with alternatives and cumulative impacts, evidence everything, and never argue economics.**

STEP 5: MEDIA STRATEGY

Media matters here because there is no local constituency to mobilise and no court in Antarctica. Coverage works by raising the **domestic political cost** in the proposing country and the **diplomatic cost** of approving a visibly weak assessment in front of other Parties.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the assessment page admitting the impact, the expert who signed the critique, imagery of the colony, and the date the window closes. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes are the missing ingredient here, so substitute **stakes of principle**: a last unbuilt place + a credible scientific objection + a documented procedural failure + a decision taken far from public view + a strong image. Three angles reliably travel: **the last wilderness being built on**, **penguins and other charismatic wildlife**, and **the mining ban and 2048** — though the last must be reported accurately, since the "expiry" framing is wrong and correcting it is itself a story.

Know the Outlets That Cover This Beat

Map the **science correspondents** in the proposing country, polar and environment specialists at international outlets, and outlets in the country hosting the next ATCM or CCAMLR meeting. Science desks matter more than news desks here.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access to the scientists who signed the critique, and be scrupulously accurate: the expert community is small, and one overstatement will be corrected publicly and will follow the campaign.

Why media matters even when it doesn't make the front page

Coverage reaches the parliamentarian who can ask the question, the specialist who will sign the next critique, the observer organisation deciding priorities, and delegations from other Parties who read foreign coverage before meetings. It also puts a dated record against the assessment's claims.

Sample Media Timeline

Launch when the draft assessment appears or the comment window opens; refresh at each milestone — the expert critique, the filing, the CEP's consideration, the ATCM outcome, and the final CEE's treatment of comments.

Media Measurement

Track coverage, but measure what matters: whether the document is released, whether the tier is revisited, whether the CEP records the objection, whether conditions or monitoring are added, and whether the activity is deferred.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, referenced and short — your readers are technical. File everything inside the stated window and keep proof of submission. Write to the competent authority of the **authorising country**, in that country's working language.

8A. Email to a reporter (story pitch)

> **Subject:** [Country]'s proposed [station / runway / activity] at [location], Antarctica — assessed at the lowest tier, comment closes [date]
>
> Dear [name],
>
> [Country]'s Antarctic programme has proposed [activity] at [location] ([coordinates]). The site is [area] of **ice-free ground** — the scarce terrain that supports almost all Antarctic terrestrial life — and lies [distance] from a breeding colony of [species] recorded at [count] pairs in [survey, year].
>
> The activity is being assessed as an **Initial Environmental Evaluation**, the middle tier. Under Annex I of the Madrid Protocol, an activity likely to have **more than a minor or transitory impact** requires a **Comprehensive Environmental Evaluation**, which must be published, circulated to every Treaty Party, and reviewed internationally before approval. [Expert name, institution] has reviewed the document and concludes [one line]; their signed assessment is attached.
>
> The public comment period closes on **[date]**.
>
> I can put you in touch with [expert] and supply the assessment and references.
>
> [Name] · [Organisation] · [phone] · [email]

8B. Comment filed in the national process

> **To: [Competent authority], [Country] Re: Public comment on the [draft CEE / IEE] for [activity], [location], Antarctica**
>
> I submit the following comments within the period notified on [date].
>
> **1. The assessment is tiered too low.** Annex I requires a Comprehensive Environmental Evaluation where an activity is likely to have **more than a minor or transitory impact**. The proposal involves [permanent structures / gravel airstrip / fuel storage] on **[area] of ice-free ground**, within [distance] of [colony]. [Expert name, qualification] concludes that this threshold is met (annex attached). A CEE should be prepared.
>
> **2. Alternatives have not been assessed.** Annex I requires consideration of **alternatives to the proposed activity, including not proceeding**. The document names [n] alternatives at pages [x–y] but provides no comparative assessment. At least one alternative — [describe] — is not considered at all.
>
> **3. Cumulative impacts are not addressed.** [Number] other stations or facilities operate within [distance]. The document assesses this activity in isolation.
>
> **4. Monitoring is not specific or verifiable.** The commitments at page [x] lack indicators, baselines, thresholds and funding.
>
> I request that these points be addressed in the final evaluation, and that the document and this comment be forwarded to the Committee for Environmental Protection.
>
> [Name, affiliation if any, date]

8C. Formal request that the activity be escalated to a CEE

Re: Request for preparation of a Comprehensive Environmental Evaluation — [activity], [location]

To [competent authority]:

Under Annex I to the Protocol on Environmental Protection to the Antarctic Treaty, an activity is subject to a **Comprehensive Environmental Evaluation** where an Initial Environmental Evaluation indicates the potential for **more than a minor or transitory impact**, or where such an impact is otherwise likely.

On the evidence summarised below and in the attached expert annex, that threshold is met: 1. **Extent and permanence** — [structures, footprint, design life]. 2. **Terrain** — [area] of **ice-free ground**, which represents [fraction] of the ice-free terrain in [region]. 3. **Biology** — [species] breeding within [distance]; [vegetation communities] present. 4. **Irreversibility** — recovery times for [soils / moss communities] are measured in [decades/centuries] (references attached). 5. **Cumulative context** — [n] existing facilities within [distance].

I therefore request that a CEE be prepared, circulated to the Parties and forwarded to the Committee for Environmental Protection in accordance with Annex I, and that the activity not be authorised in the interim.

[Name, date]

8D. Freedom-of-information request in the authorising state

Re: Request for information — Antarctic activity [name], [location]

To the information officer, [ministry / agency]:

Under [the country's access-to-information legislation] I request: 1. the **environmental evaluation** prepared for the activity, at whatever tier, together with its annexes; 2. the **decision and reasoning on the level of assessment** (preliminary / IEE / CEE), including internal advice; 3. the **permit or authorisation** issued or proposed, with its conditions; 4. correspondence with the **Committee for Environmental Protection** or other Parties concerning this activity; 5. the **monitoring plan** and any funding allocated to it.

Where a draft Comprehensive Environmental Evaluation exists, I note that such documents are to be **made publicly available**, and I request a copy on that basis.

[Name, address, date]

8E. Approach to an organisation with observer status

Subject: Technical objection to [activity], [location] — request to carry it to the CEP

Dear [organisation],

We have reviewed the [IEE / draft CEE] for [activity], proposed by [country]'s programme at [location], and filed a comment in the national process on [date] (attached).

Our central points are: (i) the activity is **tiered below CEE** despite evidence of more than a minor or transitory impact; (ii) **alternatives were not assessed** as Annex I requires; (iii) **cumulative impacts** with [n] nearby facilities are not addressed; and (iv) monitoring is unfunded and unverifiable. A signed technical annex from [expert, institution] is attached.

The draft is due before the CEP ahead of the next ATCM. **Would you be willing to table these points as a paper, or raise them in session?** We can supply references, mapping and expert contacts, and are happy for the material to be used without attribution.

[Name, organisation, contact]

8F. Briefing to a delegation of another Treaty Party

Subject: Draft CEE for [activity] — points for consideration at CEP

To the [country] delegation to the CEP:

The draft Comprehensive Environmental Evaluation for [activity] at [location] is before the Committee. We draw attention to four matters, each with supporting references: 1. **Threshold and tiering** — [one sentence]. 2. **Alternatives** — the Annex I requirement to consider alternatives including not proceeding appears unmet. 3. **Cumulative impacts** — assessed in isolation despite [n] facilities within [distance]. 4. **Monitoring** — commitments lack indicators and funding.

We are not asking any Party to oppose the activity, but to ask that these questions be answered on the record before the Committee advises the Meeting.

[Name, organisation, date]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Scientists question [country]'s plan to build at [location], Antarctica

A proposal by [country]'s Antarctic programme to construct [activity] at [location] is being assessed at the **lowest applicable level**, despite involving [area] of **ice-free ground** within [distance] of a breeding colony of [species].

"[Short quote from the expert who signed the critique]," said [name, institution].

Under the Madrid Protocol, activities likely to have **more than a minor or transitory impact** require a Comprehensive Environmental Evaluation — a document that must be published, circulated to every Antarctic Treaty Party, and reviewed internationally before approval. [Organisation] has asked [country]'s [authority] to prepare one. Public comments close on **[date]**.

Contact: [name, phone]. The assessment, the expert annex and references are available on request.

8H. Comment to CCAMLR on a fishery question

Re: [Krill / toothfish] fishery in [subarea] — comment for the Commission and Scientific Committee

The Convention requires an ecosystem-based approach to the conservation of Antarctic marine living resources. In relation to [fishery, subarea] we submit: 1. **Concentration of effort** — catch is concentrated in [area/season], overlapping foraging ranges of [predator species] during [breeding stage]. 2. **Data gaps** — [describe], including the absence of [surveys / observer coverage]. 3. **Precaution** — pending resolution of those gaps, catch limits should be [held / spatially distributed]. 4. **Protection** — we support [MPA proposal] and note the review dates attaching to existing designations.

[Name, organisation, date, references]

Important Caveat

Templates are starting points. Adapt every one to the real activity, cite the actual document and page numbers, and attach the expert annex. Three things to remember: **file inside the window**, which is the only formal public right you have; **argue the tier first**, because it decides whether the world ever reviews the document; and **never argue economics or livelihoods**, which the Protocol's definition of the Antarctic environment expressly excludes. Keep proof of every submission.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Antarctic campaigning rewards a small number of precise acts, and almost all of them are free. In rough order of impact for the effort:

1. **Identify the authorising country.** Every Antarctic activity is permitted by the government of the operator's own state. That country's law, competent authority and comment period are your entire opportunity. One search establishes it.
2. **Get the document.** Draft Comprehensive Environmental Evaluations must be **made publicly available**, and some Parties must supply copies **to any person on request**. Otherwise use that country's freedom-of-information law (Section 8D).
3. **Check the tier.** Is this a preliminary assessment, an **IEE**, or a **CEE**? If it is below CEE and the activity involves permanent structures, ice-free ground or a breeding colony, the single highest-value objection is that a **CEE is required** (Section 8C).

4. **Find one scientist.** A two-page signed critique from a qualified specialist outweighs any volume of general objection before an expert committee.
5. **File inside the window.** It is short, it is your only formal right, and it does not reopen. Make four specific points — tier, alternatives, cumulative impacts, monitoring (Section 8B).
6. **Send the same package to an organisation with observer status** and ask them to carry it to the CEP (Section 8E).
7. **Diarise the 120-day mark.** A draft CEE goes to the CEP at least 120 days before the ATCM; your points need to be with delegations before they travel.

If you do only the first three, you have found the decision-maker, obtained the document, and identified whether the activity is being kept below the level at which the world would see it. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Antarctic governance is not tilted by corruption. It is tilted by **structure**: the states that assess activities are the states that carry them out, and they decide by consensus.

What This Tilt DOES (and DOESN'T DO)

The tilt means assessments are prepared by or for the proponent; the same governments sit as assessor, operator and decision-maker; **consensus** rewards mutual deference; the definition of the Antarctic environment **excludes social and economic environments**, ruling out whole categories of argument; only **state-operated** activities have in practice been assessed at the highest level; and **not one of the nineteen CEEs has resulted in a decision not to proceed**. It does **not** close the doors: **prior assessment is mandatory for every activity**; **draft CEEs must be published, circulated to all Parties, sent to the CEP at least 120 days before the ATCM, and reviewed internationally before approval**; the **alternatives** duty including not proceeding is explicit; the operator's home state runs a **public comment period** with, in some Parties, an entitlement to copies **on request**; **Annex V** allows durable area protection; **CCAMLR** governs fisheries separately; and the **mineral prohibition** stands with no expiry.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Draft CEE circulating, credible scientific objection, engaged home-state public.** The strongest position: a published document, an international review, and a real comment window.
- **Mixed.** The activity is at IEE level and the document is hard to obtain. Weight shifts to freedom of information, the tier argument, and an observer organisation.
- **Entrenched.** A flagship national programme with strategic significance, consensus protection from other operators, and construction already funded. Assume refusal is unavailable; concentrate on **siting, footprint, conditions, monitoring, and delay**, and on building the record for the next proposal.

Documented Antarctic Dynamics

The record shows a system that is unusually open at the top and unusually unaccountable underneath. **The prohibition is genuine and durable** — Article 7 bans mineral resource activities other than scientific research with **no time limit**; the 1988 minerals convention **never entered into force**; and Parties adopted a 2016 Declaration recording a **"strong and unequivocal commitment"**. **The 2048 framing is a misconception** — neither instrument expires; Article 25 allows a Consultative Party to **request a review conference**, and any change would need adoption by a majority including **three quarters of the original Consultative Parties** and would not take effect **unless a binding minerals regime were already in force**. **The assessment regime is transparent only at the highest tier** — draft CEEs are published, circulated and sent to the CEP **at least 120 days before the ATCM**; IEEs are not. **And the highest tier has never refused anything** — of nineteen CEEs, **none produced a decision not to proceed**. **Protection is possible but slow** — around **seventy-five ASPAs** and **seven ASMAs** exist, each with a management plan. The lesson: **you are not going to win a veto; you are going to win a better project, a protected area, or a precedent — and those are worth having.**

Assessment Framework — Determine Your Situation

Ask: which country authorises this? What tier is the assessment, and can we obtain it? Is a **draft CEE** circulating, and when is the ATCM? Does the site involve **ice-free ground**, a breeding colony, a subglacial system, or an area with no existing infrastructure? Are other programmes nearby, giving a **cumulative** argument? Can we secure **one signed expert critique** and an **observer organisation** to carry it? Is this actually a **fishery**, in which case CCAMLR applies? The answers tell you whether to fight on the tier, on alternatives, on protected-area designation, or on conditions and monitoring.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Physical protest in Antarctica itself is essentially unavailable: access is controlled by national programmes and tour operators, the environment is lethal without support, and unauthorised presence would itself require a permit and could breach the very Protocol you are invoking. Campaigning therefore happens in **capitals and at meeting venues**, where organisations have long maintained a visible presence around ATCM and CCAMLR sessions. Keep everything lawful and factual. The specific caution here is unusual but important: **your credibility is the campaign's only real asset**, because the audience is a small expert community that will check your claims — one overstatement is not merely a setback but a lasting disqualification.

Honest Assessment

Tilted fights are harder, and Antarctica's is tilted by design rather than by malpractice. But "harder" is not "hopeless": every activity must be assessed before it happens, the highest tier is genuinely public and internationally reviewed, the duty to consider alternatives is explicit, and the mining prohibition has held for three decades and been repeatedly reaffirmed. Concentrate force where the tilt is weakest — **the tier, the alternatives duty, the comment window, and the CEP** — and measure success in scope, siting, conditions and time.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Antarctic decisions are rarely corrupt in the ordinary sense. The failure mode is **institutional capture**: assessor and operator are the same government, and consensus makes mutual criticism costly. Read your situation actor by actor, and publish documents rather than accusations.

The assessment's author. Prepared by or for the proponent programme. Signs: an impact conclusion asserted rather than evidenced; alternatives listed but not compared; cumulative effects absent; monitoring without indicators or funding. Lever: the signed expert critique and the Annex I duties.

The tiering decision. The most consequential discretionary act in the system, because it decides whether the document is ever published. Signs: a substantial permanent facility characterised as having no more than a **minor or transitory impact**. Lever: the written request for escalation to a CEE, plus freedom of information on the reasoning behind the tier.

Consensus deference. Parties are reluctant to challenge each other's stations, since the same scrutiny would return to their own. Signs: a CEP record showing minimal comment on a major proposal. Lever: brief scientists and organisations in **other** Parties, who can raise questions their delegations will carry.

Scope exclusion. The Protocol's definition of the Antarctic environment **excludes social and economic environments**, which legitimately narrows debate — but it is sometimes used to deflect questions that are properly environmental. Lever: reframe every point in environmental and scientific terms, which is where they belong anyway.

Non-state operators. Tourism and other commercial activity have historically received less rigorous assessment than national programmes. Lever: ask, in writing, what assessment was done and by whom, and raise the disparity publicly.

How to act on it, safely. Document from the Treaty Secretariat archive, the CEP reports and the authorising state's own records before you speak. Route genuine concerns to the **competent authority**, the **CEP** through an observer organisation, and the **parliament and information commissioner** of the proposing country — and, above all, into your **formal comment**, where they must be addressed. Do not publish unproven accusations about named scientists or officials: in a community this small, the documentary record is both stronger evidence and the only sustainable ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Antarctica the timeline is set by two fixed points you do not control: the **national comment window**, which is short, and the **annual ATCM**, which a draft CEE must reach **at least 120 days** in advance. Everything else arranges itself around those.

Realistic 12-Month Campaign Timeline

Weeks 1–4 (Find the decision-maker and the document). - Establish **which country authorises** the activity, its Antarctic legislation and competent authority. - Request the assessment — invoking public availability for a draft CEE, or freedom of information otherwise (Section 8D). - Determine the **tier**: preliminary, IEE or CEE. - Begin the referenced baseline: **ice-free ground**, colonies, vegetation, ice and freshwater systems, wilderness value. - Approach one or two **specialists**.

Weeks 4–12 (File, and escalate the tier). - Obtain the **signed expert annex**. - File the **comment inside the window**, making four specific points — tier, alternatives, cumulative impacts, monitoring (Section 8B). - Where the tier is too low, file the formal **request for a CEE** (Section 8C). - Send the package to an organisation with **observer status** (Section 8E). - Launch media timed to the comment window.

Months 3–6 (Carry it into the international process). - Track the draft CEE to the **CEP**, ensuring points reach delegations **before the 120-day mark**. - Brief scientists and organisations in **other Treaty Parties** (Section 8F). - Broaden the coalition — polar institutes, national Antarctic societies, parliamentarians in the proposing state. - For fisheries, file to **CCAMLR** on its own timetable (Section 8H).

Months 6–12 (Test the outcome and consolidate). - Read the **final CEE** against the comments: it must show how yours were addressed. - Press for **conditions, monitoring and reporting** where the activity proceeds. - Where values justify it, begin an **ASPA or ASMA** proposal through a sympathetic Party — slow, but durable. - Use **parliamentary questions and freedom of information** in the authorising state to test what was decided and why.

Beyond 12 months. - Protected-area designation runs on a multi-year timetable; keep it moving. - Monitor implementation and inspection findings; non-compliance is a fresh, documentable issue. - Watch for **expansion phases**, which require their own assessment and reopen the argument. - Keep the record for **2048**: the review conference is a political event, and the case for the prohibition will be built from decades of documented practice.

Warning Signs — Act Early

A national programme announcing a "modernisation" or "replacement" station; a proposal for a **runway, wharf or fuel facility**, which unlocks everything that follows; an activity described as having "no more than minor or transitory impact" despite permanent structures; a draft appearing shortly before an ATCM; a new tour route or landing site; a rise in krill catch concentrated in one subarea. Each is a trigger to **identify the authorising state and request the document that week** — because the comment window is the only formal opening you get.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the **authorising country** first; obtain the **document**; test the **tier** and demand escalation where it is wrong; secure **one signed expert critique**; file **inside the window** with proof; argue **alternatives and cumulative impacts**; route everything through an **observer organisation** to the CEP; brief **other Parties**; and hold the final CEE to the comments. Losing campaigns: petition the wrong government; argue economics; miss the window; accept the tier; overstate the science; and treat the ATCM as if it were a court.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Antarctica is narrower than anywhere else in this series, and naming it honestly is the point: - an activity **escalated from IEE to CEE**, so it must be published, circulated to every Party and reviewed internationally; - **alternatives genuinely assessed**, and a **different site or design** adopted; - the **footprint reduced** — a runway dropped, a building shortened, a route moved away from a colony; - **conditions, monitoring and reporting** written into the authorisation, and funded; - the activity **deferred** a season or a year while questions are answered; - an **ASPA or ASMA designated**, putting a permit requirement and a management plan over the site permanently; - a **catch limit held** or a marine protected area advanced under CCAMLR; - documents **released** that were not going to be published; -

and the **mineral prohibition reaffirmed**, as Parties have done repeatedly.

What is not on the list is refusal. **Of nineteen Comprehensive Environmental Evaluations, none has resulted in a decision not to proceed.** Plan for the outcomes above and you will sometimes get them; plan for a veto and you will simply be disappointed.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. Before the comment window closes, everything is cheap and everything matters — the document request, the tier argument, the expert annex. If the tier is escalated, you have won the most valuable thing this system offers, because the decision moves into public international view. If the activity proceeds anyway, shift immediately to **conditions, monitoring and inspection**, which is where the practical difference to the environment is actually made, and to **protected-area designation**, which outlasts the project. If the question is a fishery, remember it is CCAMLR's timetable, not the Protocol's. And if you are working toward **2048**, understand what you are defending: not an expiring ban, but a prohibition with no time limit that would require a review conference, a supermajority including three quarters of the original Consultative Parties, and a binding minerals regime already in force before it could be undone.

The Bottom Line

Antarctica is the only place in this series where the worst outcome is already prohibited. **Article 7 of the Madrid Protocol bans any activity relating to mineral resources other than scientific research, with no expiry**, the continent is designated a **natural reserve devoted to peace and science**, and protection of the environment and Antarctica's **intrinsic value** must be fundamental considerations in planning every activity. Around that stands a real assessment system: **prior environmental impact assessment is mandatory**, tiered on whether an activity may have **more than a minor or transitory impact**; a **Comprehensive Environmental Evaluation** must be **made publicly available, circulated to every Party, forwarded to the Committee for Environmental Protection at least 120 days before the Antarctic Treaty Consultative Meeting, and reviewed there before approval**; **alternatives, including not proceeding, must be considered**; **Annexes II to VI** govern wildlife, waste, marine pollution, protected areas and environmental emergencies; **CCAMLR** governs the fisheries; and the operator's **own government** runs a public comment period that in some Parties runs ninety days and entitles **any person** to a copy of the draft. The honest counterweight is that assessor and operator are the same states, decisions are taken by consensus, social and economic arguments are excluded by definition, and **no CEE has ever stopped anything**. Campaigns that identify the authorising country, obtain the document, contest the tier, secure one signed expert critique, file inside the window, argue alternatives and cumulative impacts, and route their evidence through an organisation seated at the table have moved stations, shrunk footprints, added binding monitoring, secured protected areas and held the line on minerals. No single step wins; the combination does. Start today by answering one question: **which government has to authorise this, and what have they published?**